

26NNCV03428 26NNCV03428

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-09-23
Motion: MOTION TO STRIKE
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Case Number: 26NNCV03428 Hearing Date: September 23, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

GEVORK
MKHITARYAN,

Plaintiff(s),

vs.

FITNESS
INTERNATIONAL, LLC,

Defendant(s).

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CASE NO.: 26NNCV03428

[TENTATIVE]

ORDER RE: MOTION TO STRIKE

Dept.

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8:30

a.m.

September

23, 2026

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On April 30, 2026, plaintiff Gevork Mkhitarian ("Plaintiff") filed this action against Defendant Fitness International, LLC ("Defendant"). Defendant moves to strike portions of Plaintiff's Second Cause of Action for Premises Liability: (1) Count Two – Willful Failure to Warn (Civil Code section 846) and (2) Count Three – Dangerous Condition of Public Property.

Plaintiff generally alleges that he slipped and fell while visiting property owned by Defendant. Plaintiff does not state any facts identifying the dangerous condition that Defendant failed to warn of; therefore, the Second Count for Willful Failure to Warn is

inadequately pleaded. Also, it is undisputed that Count Three for Dangerous Condition of Public Property is inappropriate because Defendant is not a public entity.

Accordingly, the unopposed motion to strike is GRANTED without leave to amend.

Dated
this 23rd
day of September 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.